

SENATE No. 159

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to supporting families dealing with sudden unexplained death in pediatrics.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/21/2025</i>

SENATE No. 159

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 159) of Joan B. Lovely for legislation relative to supporting families dealing with sudden unexplained death in pediatrics. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 105 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to supporting families dealing with sudden unexplained death in pediatrics.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2A of chapter 38 of the General Laws is hereby amended by inserting the
2 following paragraph:-

3 (h) In all cases of sudden unexpected death in pediatrics when autopsy is required by law,
4 except in cases of (1) homicide, (2) suicide or (3) established cause, the office of the chief
5 medical examiner shall, on behalf of the parents of the deceased, engage services including, but
6 not limited to, genetic testing and ongoing bereavement support. The office of the chief medical
7 examiner shall refer, as close to the time of incident as possible, but no longer than three days
8 after receipt of the decedent, any undetermined death of a child three years of age or younger to
9 the Massachusetts center for unexpected infant and child death at Boston Medical Center for
10 counseling and grief support. These referrals shall include any suspected case of sudden infant

- 11 death syndrome, sudden unexplained infant death, sudden unexpected death in childhood, sudden
- 12 unexplained death in pediatrics or any sudden child death likely to remain unexplained by
- 13 standard autopsy and investigation.